

Ram Asre v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 January 2021 · Writ - C No. 27425 of 2020 · Writ - C No. 27425 of 2020 · **Writ disposed of; petitioner directed to represent under Clause 6.15; Executive Engineer to decide by speaking order within four weeks.**

HEADNOTE

A Division Bench of the Allahabad High Court disposed of a consumer's writ against a PuVVNL demand notice dated 18 July 2020 without examining kWh versus kVAh billing, surcharge exemption, or instalments. Treating the amount as disputed, the Court directed a representation under Clause 6.15 of the Electricity Supply Code, 2005 to the Executive Engineer/Prescribed Authority, Dhanghata, who must decide by a reasoned speaking order after hearing, within four weeks.

FACTUAL SUMMARY

Ram Asre challenged a PuVVNL demand notice dated 18 July 2020 from the Executive Engineer, Dhanghata, Sant Kabir Nagar, seeking its quashing and recasting of the bill on kWh instead of kVAh, with surcharge exemption and instalments. Counsel for the Power Corporation submitted that he had paid nothing despite an earlier demand of 4 November 2019, that the 2020 notice followed that default, and that the disputed amount should be represented under Clause 6.15 of the Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.15

relegation of disputed demand to prescribed authority

HOLDING

Without deciding the validity of the demand or the kWh/kVAh billing dispute, a writ against a demand notice is disposed of by directing the consumer to move a representation under Clause 6.15 of the Electricity Supply Code, 2005 before the Executive Engineer/Prescribed Authority, who shall consider and decide it strictly in accordance with law by a reasoned speaking order after hearing, within four weeks of the representation. ¶ 1

PRINCIPLE TAGS

clause-6.15-two-year-limitation-relegated-to-authority The Court did not apply Clause 6.15's two-year bar on the merits. It accepted the licensee's submission that a disputed demand should be represented under Clause 6.15 and relegated the consumer to the Executive Engineer/Prescribed Authority for a speaking order after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 18 JULY 2020 WAS LIABLE TO BE QUASHED

¶ 1

NOT DECIDED — WHETHER THE BILL WAS TO BE RECAST ON KWH INSTEAD OF KVAH

¶ 1

NOT DECIDED — ENTITLEMENT TO SURCHARGE EXEMPTION AND PAYMENT OF DUES IN INSTALMENTS

¶ 1

